

24SMCV00593 24SMCV00593

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-10

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Defendant seeks a continuance of this motion on the ground that it did not receive notice thereof. Notice was apparently sent by the court to an incorrect email address by Mr. Peng, counsel of record for the defense. That is true. Apparently, the clerk's proof of service of the Minute Order dated May 6, 2026, was sent to Mr. Peng at the wrong address. However, it was sent to Mr. Stone, also counsel, at the correct address. The court is, again, troubled. The service on Mr. Peng was invalid, the court must agree. And the court must accept that responsibility. (Frankly, the court is not sure how it got that email address, but it appears to be the one in the file.) Mr. Peng was added as counsel of record by notice dated November 26, 2024. His email is correctly set forth. And in every pleading filed by the defense, his address is set forth correctly. Yet somehow, the court had the wrong one. The court remains puzzled, though, as to why the matter was not known to the defense when proper notice was sent to Mr. Stone. The request for additional time fails to address that issue, and the court will want to discuss why that is.

In any event, defendant claims a notice issue. The court is inclined to GRANT the request for a continuance because the court's notice was not correct. The court will attempt to improve its system to be sure that things are properly sent, but the court would also suggest that Messrs. Stone and Peng talk to one another given the firm's new and improved calendaring system to ensure that if either gets proper notice, the date is set forth.

The court will discuss new dates with counsel.